

(8) Constructive Fraud

Defendant's Demurrer to Plaintiff's constructive fraud cause of action is also on the grounds that it lacks specificity. And, for the same reasons as discussed above with respect to Plaintiff's false promise cause of action, the Court disagrees. The Demurrer on this ground is **overruled**.

5. 9:00 AM CASE NUMBER: C23-02994

CASE NAME: NICOLETTE GRANZELLA VS. STEVEN SACKS

HEARING IN RE: JOINDER TO DEFENDANT PRIME SMOKED MEATS, INC.'S DEMURRER TO FIRST AMENDED COMPLAINT

FILED BY: SACKS, STEVEN M

TENTATIVE RULING:

Before the Court is Defendant Steven M. Sacks, aka Steven Sacks, aka Steve M. Sacks, aka Steve Sacks ("Defendant" or "Sacks") joinder to the Demurrer of Defendant Prime Smoked Meats, Inc.

Joinder is appropriate where the joinder seeks affirmative relief on behalf of the joining party and joins in the arguments made by the motion being joined. (*Barak v. Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661.) If the joinder itself is not in the form of a motion, does not present any evidence or argument, that joinder does not alone constitute a motion that will entitle a party to relief or cause the party to be bound by the ruling of the court on the pending motion made by another party. (*Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382, 1392 [superseded by statute on other grounds].)

Here, Defendant both seeks affirmative relief on his own behalf and joins in the arguments made by Defendant Prime Smoked Meats. However, because Defendant Prime Smoked Meats' Demurrer is **overruled**, the joinder to that motion is **denied** as moot.

6. 9:00 AM CASE NUMBER: C24-01742

CASE NAME: 1716 NORTH MAIN STREET, LLC VS. HEFFERNAN INSURANCE BROKERS

*HEARING ON MOTION IN RE: STRIKE PLTFS CLAIM FOR PUNITIVE DAMAGES IN 1ST AMENDED COMPLAINT

FILED BY: HEFFERNAN INSURANCE BROKERS

TENTATIVE RULING:

Before the Court is Defendant Heffernan Insurance Brokers' Motion to Strike Plaintiff's Claim for Punitive Damages in the First Amended Complaint.

Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. ("CCP") §435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782

["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Scope of Motion

"A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense." (Cal. R. Ct. 3.1322(a). Defendant's notice indicates that it is seeking to have "[a]ll punitive damages allegations as to Heffernan" stricken, as set forth in paragraph 47 of the FAC and paragraph 2 of the Prayer for Relief. No other portions of the FAC are at issue.

Analysis

Under Civil Code §3294, punitive damages may be awarded "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, **or** malice." (Civil Code § 3294(a) [emphasis added].)

"The words 'oppression, fraud, or malice in Civil Code section 3294 being in the disjunctive, fraud alone is an adequate basis for awarding punitive damages. [citations].'" (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235 Cal.App.3d 1220, 1239 *quoting Glendale Fed. Sav & Loan Assn. v. Marina View Heights Dev. Co.* (1977) 66 Cal.App.3d 101, 135; *see also Nicholson v. Rose* (1980) 106 Cal.App.3d 457, 462 ["fraud itself implies malice" for punitive damages]).

The third cause of action, which includes the request for punitive damages, is for intentional misrepresentation. "Intentional and negligent misrepresentations are both actionable forms of fraud." (*Conte v. Wyeth, Inc.* (2008) 168 Cal.App.4th 89, 101 fn. 7; *see also* Cal. Civ. Code § 3294 (c)(1) defining fraud to include an intentional misrepresentation.) "Punitive damages are recoverable in those fraud actions involving intentional, but not negligent, misrepresentations." (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1241.)

"A fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient." (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610 multiple citations omitted.) Defendant did not demurrer to the cause of action or seek to have it stricken. Thus, as "[f]raud alone is an adequate ground for awarding punitive damages....," and the FAC asserts a fraud cause of action (i.e. intentional misrepresentation), that is sufficient to support a claim for punitive damages. (*Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 697 ["Fraud alone is an adequate ground for awarding punitive damages..."].)

Conclusion

Defendant's motion to strike is **denied**.